

BETTY JEAN CLOWERS ESTATE NEW EVIDENCE AND FILING RECOMMENDATIONS

*Estate No. 26PV49392 - Bibb County Probate Court
Prepared from materials supplied through August 30, 2026*

RESEARCH AND DRAFTING AID - NOT A SUBSTITUTE FOR ADVICE FROM A GEORGIA ATTORNEY

Executive assessment

The new material materially strengthens two immediate points: (1) Kayveon/Keyvean Clowers was identifiable and actively involved in Betty Jean Clowers' funeral arrangements immediately after her death; and (2) 1661 Lawton Avenue is a specific estate asset whose title history and possible sale require prompt protection while the service challenge is decided. The evidence does not, by itself, prove undue influence, fraud, or misconduct. It does justify a focused service petition, a short property-preservation motion, expedited preservation of records, and immediate title work.

Recommended filing package now

- Petition to Set Aside or Amend Probate Order based on ineffective service, relying on O.C.G.A. §§ 53-5-20(b), 53-5-50 through 53-5-52, 53-5-22, 53-11-3, and the alternative service provisions of O.C.G.A. § 9-11-4(k).
- Affidavit of Kayveon Clowers limited to residence, attempted service, lack of waiver, lack of personal receipt, timing of actual notice, and his immediate post-death contact with the funeral home.
- Motion to Preserve Estate Property Pending Hearing, asking that no deed of assent, sale, mortgage, conveyance, or distribution of proceeds involving 1661 Lawton Avenue occur without further order.
- Proposed Order setting an expedited evidentiary hearing and preserving service evidence and the property pending that hearing.
- Notice of Current Address and Contact Information, or counsel's Entry of Appearance if represented.

Why a separate property-preservation request is now warranted

The estate remains open, the personal representative holds Letters Testamentary, and the later will addresses Betty's interest in 1661 Lawton Avenue and directs a sale. The new documents provide a clearer title trail and show that the property has previously been the subject of a proposed sale. If the property is conveyed to a purchaser without notice before the service issue is resolved, the practical remedy could become more difficult. The request should be narrow and should not accuse the personal representative of misconduct. It should preserve the status quo only.

Suggested relief: "Until the Court resolves Kayveon Clowers' challenge to service, no deed of assent, sale, conveyance, mortgage, security deed, or other transfer of 1661 Lawton Avenue shall occur without further order, and no proceeds attributable to the property shall be distributed."

Documents that should not be filed with the service petition

- The funeral program, obituary, insurance materials, old correspondence, and 2022 proposed contract should not all be attached to the initial service petition.
- The initial petition should remain centered on whether Kayveon was effectively served. The additional material should be preserved, indexed, and used only where it proves a specific point.
- The photographed 2008 will should not be presented as a certified original. It may support investigation and later caveat allegations, subject to authentication and lost-will requirements.
- Undue influence, capacity, notary, insurance, and caregiver-control allegations should be pleaded only after the supporting records are obtained or where necessary to preserve a deadline.

New evidence findings

1. Funeral-home records

Several Jones Brothers Mortuary documents appear to have been completed on October 26, 2025, two days after Betty's death. The records appear to identify Kayveon/Keyvean Clowers as the person making final arrangements, the purchaser, the signer of the cremation authorization, and Betty's son. One authorization states that the signer is next of kin or an authorized agent for next of kin. These documents are strong third-party evidence that Betty's son was known, reachable, and participating immediately after death.

The cremation authorization contains an Atkins/Adkins Drive address. The photographed handwriting should be compared with the probate petition's 3351 Atkins Drive address and confirmed from the funeral home's original file. The photograph may read 3151 rather than 3351, and the street may appear as "adkins." The report does not resolve that handwriting discrepancy.

- Obtain the complete mortuary file, including intake sheet, contact numbers, email addresses, identification, payment records, call logs, notes, text messages, crematory communications, and the person who supplied Kayveon's contact information.
- Ask who directed the funeral home to contact Kayveon and whether Frances Brooks Thornton, the probate attorney, or another person had his phone number or address before March 5, 2026.
- Use a funeral-home custodian affidavit or subpoenaed certified business records if the documents are later offered in court.
- Attach only the most direct funeral authorization to Kayveon's affidavit if counsel concludes it is necessary to rebut the claim that his address or identity could not be found.

2. 2020 Affidavit of Descent and Willie Clowers records

The recorded 2020 Affidavit of Descent and Explanation concerns 1661 Lawton Avenue and references Deed Book 2765, Page 344. It states that Willie Clowers and Betty Jean Clowers each held a one-half interest under a 1995 warranty deed; that Willie died intestate; that he was married to Betty at death; that he had no children; and that Betty was his heir. The instrument was recorded at Deed Book 10588, Pages 319-321. The photographed death certificate supports the marital relationship and the Lawton Avenue residence.

- Obtain certified copies of Deed Book 2765, Page 344; Deed Book 10588, Pages 319-321; the referenced death certificate; and every instrument indexed against Betty Jean Clowers, Willie Clowers, Frances Brooks Thornton, and 1661 Lawton Avenue.
- Confirm whether the 2020 affidavit transferred title or merely supplied record evidence of descent. A title attorney should examine the complete chain rather than relying on the tax assessor page.
- Compare the 2008 will's life-estate/remainder language with the record title. A will can devise only the interest owned by the testator at death.

3. 2022 Red Clay Properties proposed sale

The photographed contract identifies Red Clay Properties as purchaser, Betty Jean Clowers as seller, 1661 Lawton Avenue as the property, and \$42,500 as the proposed price. It names Benjamin F. McElreath Jr. of Martin Snow LLP as closing attorney. The photographed buyer acceptance page appears signed by the purchaser, but the photographed seller signature page appears blank for both Betty and Erica Franklin. On the present photographs, this should be described as a proposed or incomplete contract, not a completed sale.

- Request the complete Martin Snow closing file, including title report, title commitment, lien search, communications, identification, powers of attorney, payoff requests, seller documents, cancellation correspondence, and the reason the transaction did not close.

- Contact Red Clay Properties only through counsel or a neutral records request. Preserve the purchaser's emails, inspection records, offer history, and communications with Betty, Erica Franklin, or any caregiver.
- Determine whether earnest money was paid and returned. The photographed form provides for \$1,000 earnest money but does not prove payment.
- Use the 2022 transaction as a title and capacity lead, not as evidence of wrongdoing without the complete file.

4. 2025 Bibb County assessment

The assessment printout identifies parcel P074-0432 at 1661 Lawton Avenue and lists the owner line as Betty Jean Clowers, care of Frances Brooks Thornton, at a North Augusta address. It reports a 2025 current value of \$181,340, consisting of \$15,295 land and \$166,045 improvements. A tax assessment is not a title opinion and does not prove that Frances owns the property. The "care of" address is, however, a useful lead concerning who was receiving tax notices and managing the property address.

- Obtain the assessor account-change history, all address-change forms, the date the "c/o Frances Brooks Thornton" mailing address was added, who requested it, and supporting documents.
- Obtain tax bills and payment history from 2020 through the present.
- Compare assessment value with the 2022 proposed \$42,500 sale and any current offer, but do not equate assessed value with fair market value without condition evidence and appraisal.

5. Obituary and funeral program

The obituary identifies Betty's son Keyvean/Keyvean Clowers, grandson, siblings, goddaughter, and extended family. It does not appear to describe Frances Brooks Thornton as Betty's biological daughter. The precise obituary wording and every listed relationship should be transcribed from a flat scan before use. Obituaries are generally family-supplied statements, not conclusive vital records, but they can identify witnesses and test the later will's "daughter and caretaker" description.

- Identify who wrote and approved the obituary and who supplied the family list.
- Preserve the original publisher/funeral-home electronic file rather than relying only on a photograph.
- Use the obituary primarily to locate witnesses and family members, not as sole proof of legal kinship.

Immediate non-court actions

- Send a preservation and Georgia Open Records request to the Bibb County Sheriff for body-camera footage, CAD/dispatch data, deputy notes, GPS/location data, service worksheet, photographs, return information, and communications regarding service.
- Obtain a certified complete probate file, including the original Return of Sheriff and every page of the service packet.
- Collect objective evidence of Kayveon's actual residence on the service date: driver's license, voter registration, vehicle registration, bank statements, utility records, employer records, tax filings, insurance, mail, and lease/occupancy records.
- Prepare a truthful declaration from the girlfriend addressing what she told the deputy, whether Kayveon resided there on that date, whether they were separated, what documents she received, and whether or when she gave them to him.
- Run an updated certified title search through the filing date and check for deed of assent, executor's deed, warranty deed, quitclaim deed, security deed, liens, lis pendens, tax sale, listing agreement, or pending contract.
- Preserve all original paper documents in sleeves or folders. Do not write on, staple through, crop, enhance, or discard them. Photograph fronts and backs with a scale and neutral lighting.

Possible lis pendens

Counsel should evaluate a notice of lis pendens only after confirming that the pending pleading directly seeks relief concerning 1661 Lawton Avenue. A lis pendens is not a lien and does not itself stop a sale; it provides record notice of litigation affecting the property. It must be drafted carefully because Georgia law permits challenges and potential bond requirements. This should not be filed casually or solely because the estate owns real property.

Draft short motion to preserve estate property

IN THE PROBATE COURT OF BIBB COUNTY
STATE OF GEORGIA

IN RE: ESTATE OF BETTY JEAN CLOWERS, DECEASED
ESTATE NO. 26PV49392

MOTION TO PRESERVE ESTATE PROPERTY

Kayveon Clowers asks the Court to preserve 1661 Lawton Avenue while his Petition to Set Aside Probate Order is pending.

The Estate remains open, the personal representative holds Letters Testamentary, and the August 4, 2025 will addresses Betty Jean Clowers' interest in 1661 Lawton Avenue and directs a sale. Kayveon challenges whether he was effectively served before the April 22, 2026 order was entered.

A transfer before the service issue is decided could impair the Court's ability to grant meaningful relief. Kayveon does not seek removal of the personal representative through this motion and does not allege that a transfer has already occurred. He asks only that the property remain in its present status until the service issue is heard.

Kayveon requests an order providing that, until further order of the Court, no deed of assent, sale, conveyance, mortgage, security deed, or other transfer of 1661 Lawton Avenue shall occur and no proceeds attributable to that property shall be distributed.

Respectfully submitted,

KAYVEON CLOWERS, Pro Se

Address: _____

Telephone: _____

Email: _____

Evidence matrix

Evidence	What it supports	What it does not prove	Next authentication step
Funeral authorizations signed by Kayveon	Known son; immediate post-death participation; address/contact lead	That probate petitioner actually knew his exact address in March 2026	Mortuary custodian records and testimony
2020 recorded affidavit of descent	Title-history explanation; Betty claimed as Willie's heir	Complete marketable title or absence of liens	Certified deed-chain examination
Willie death certificate	Marriage, residence, death facts supporting	Betty's entire later title	Certified vital record and underlying deeds

	affidavit		
2022 Red Clay proposal	Prior sale effort; \$42,500 price; closing-attorney lead	Completed binding sale or actual payment	Complete closing file and communications
2025 assessment	Parcel identity; c/o mailing address; assessed values	Legal ownership or fair market value	Assessor change history and certified title search
Obituary/program	Family/witness leads and public relationship narrative	Legal heirship or falsity of will language	Funeral-home source file and author testimony

Complete source-image index

IMG_4533.jpg - Jones Brothers Mortuary funeral purchase contract / statement of goods and services, dated October 26, 2025; appears signed by Kayveon/Keyvean Clowers as purchaser.

IMG_4534.jpg - Jones Brothers Mortuary cremation authorization for Betty Jean Clowers; appears signed by Kayveon/Keyvean Clowers and gives an Atkins/Adkins Drive address. Exact street number should be verified from the original.

IMG_4535.jpg - Jones Brothers funeral disclosure/disclaimer form; appears signed by Kayveon/Keyvean Clowers as person making final arrangements.

IMG_4536 2.jpg - Duplicate/alternate photograph of funeral-home authorization signed by Kayveon/Keyvean Clowers, relationship listed as son, dated October 26, 2025.

IMG_4536.jpg - Funeral-home authorization signed by Kayveon/Keyvean Clowers, relationship listed as son, dated October 26, 2025.

IMG_4537 2.jpg - Duplicate/alternate photograph of 2020 Affidavit of Descent and Explanation, recorded at Deed Book 10588, Pages 319-321.

IMG_4537.jpg - 2020 Affidavit of Descent and Explanation, first page, concerning 1661 Lawton Avenue.

IMG_4538 2.jpg - Duplicate/alternate photograph of second page/signature page of the 2020 Affidavit of Descent.

IMG_4538.jpg - 2020 Affidavit of Descent, signature page, signed by Erica Franklin and notarized.

IMG_4539.jpg - Certified copy photograph of Willie Lee Clowers death certificate, showing Betty Clowers as wife/informant and 1661 Lawton Avenue as residence.

IMG_4540.jpg - 2022 proposed real estate sales contract: Red Clay Properties purchaser, Betty Jean Clowers seller, 1661 Lawton Avenue, stated purchase price \$42,500.

IMG_4541.jpg - 2022 proposed contract page containing title examination, condition, cooperation, commission, and successor provisions.

IMG_4542.jpg - 2022 proposed contract page naming closing attorney Benjamin F. McElreath Jr. of Martin Snow LLP and a March 15 closing date.

IMG_4543.jpg - 2022 proposed contract acceptance page signed by purchaser Red Clay Properties; seller signature is not shown on this page.

IMG_4544.jpg - 2022 proposed contract seller signature page; lines for Betty Jean Clowers and Erica Franklin appear unsigned in the photographed copy.

IMG_4545.jpg - Legal description exhibit for 1661 Lawton Avenue / Lot 9, Block 16, Huguenin Heights.

IMG_4546.jpg - 2025 Bibb County property assessment page for parcel P074-0432, 1661 Lawton Avenue; owner line appears Betty Jean Clowers c/o Frances Brooks Thornton.

IMG_4547.jpg - 2025 assessment valuation history and property photograph.

IMG_4548.jpg - Obituary page for Betty Jean Clowers listing family relationships and order of service.

IMG_4549.jpg - Funeral program order of service.

IMG_4550.jpg - Funeral program cover for Betty Jean Clowers, sunrise November 28, 1941, sunset October 24, 2025.

IMG_4551.jpg - Funeral program acknowledgements and family photographs.

IMG_4552.jpg - 2004 Affidavit of Descent and Explanation concerning Willie Clowers / 1661 Lawton Avenue.

IMG_4553.jpg - Second page/signature page of 2004 affidavit of descent.

IMG_4554.jpg - Willie Lee Clowers death certificate / record copy supporting the descent affidavit.

Appendix: source photographs

The following pages reproduce every image supplied in this evidence batch. Duplicate and alternate photographs are included intentionally. The source JPEG files in the repository remain the preservation copies.

Jones Brothers Mortuary funeral purchase contract / statement of goods and services, dated October 26, 2025; appears signed by Kayveon/Keyvean Clowers as purchaser.

IMG_4534.jpg

Jones Brothers Mortuary cremation authorization for Betty Jean Clowers; appears signed by Kayveon/Keyvean Clowers and gives an Atkins/Adkins Drive address. Exact street number should be verified from the original.

Jones Brothers Mortuary
3035 Millerfield Road
Macon, Georgia 31217
(478) 743-3331

CREMATION AUTHORIZATION

State GEORGIA County of Death RICHMOND Cremation Date _____

The undersigned authorizes, our agent, HART'S MORTUARY & CREMATORY, in accordance with and subject to its Rules and Regulations, to cremate the remains of BETTY JEAN CLOWERS who died at AUGUSTA GEORGIA on OCTOBER 24, 2025 and agrees to be responsible for and pay all charges incurred with respect to this authorization.

The Funeral Director in charge is FREDDIE JONES. I further state the death ☐ was (or) ☐ was not due to infectious or contagious disease. I understand that if I do not notify the Crematory about a death by infectious or contagious disease, that I will be liable for any injury to the Crematory personnel.

IT IS REQUESTED THAT THE FOLLOWING DISPOSITION BE MADE OF THE CREMATED REMAINS:
☐ Return to Funeral Home: JONES BROTHERS MORTUARY
☐ Deliver to: _____

The undersigned hereby authorizes the Crematory to deliver the cremated remains via Registered Mail and agrees to assume all liability for any damages that may arise from any cause growing out of said delivery and to indemnify, and hold harmless to Crematory and the Funeral Director from any and all claims related to said shipment. The undersigned agrees to pay the charge for such delivery in the amount of _____.

I hereby certify that I/we am/are related to the deceased as _____, and I have the right to authorize this cremation and the disposition of the cremated remains. I understand that due to the nature of the cremation process, any valuable materials, including dental gold, will either be destroyed or not be recoverable. Any personal possessions accordingly have either been removed or may be destroyed. "If the container or any portion thereof is not suitable for cremation, the Crematory may require the remains be removed to a suitable container." I understand that the cremated remains are bone fragments, which will be reduced in sized and placed in an urn. Urns provided by the Crematory are sufficient in size for all cremated remains. In the event the capacity of the urn I selected elsewhere is less than the amount of the cremated remains, the Crematory is hereby authorized to return said excess cremated remains in a separate container. I further agree that I will indemnify and hold harmless the Crematory and the Funeral Director, their officers and employees from any liability, costs, expenses or claims resulting from this authorization.

I further state that the deceased has not had a pacemaker implanted, radiation producing implant device, nor" any other life sustaining device that could be explosive. If such a device exists, I have instructed the Funeral Director or others to remove it before cremation. I also agree that in the event of my failure to notify the Funeral Director or any others responsible for the removal of such a device, I will be liable for any damages to the Crematory or injury to Crematory personnel.

☐ I certify there are NO medical implants.
☐ I certify there ARE medical implants. Describe: _____ Initials _____

Signed: Kayveon Clowers
Address: 3151 adkins dr
City macon State GA Zip 31204

Witness: Phillip Stanley
Date: 10-26-2025

Signed: _____
Address: _____
City _____ State _____ Zip _____

Signed: _____
Address: _____
City _____ State _____ Zip _____

IMG_4535.jpg

Jones Brothers funeral disclosure/disclaimer form; appears signed by Kayveon/Keyvean Clowers as person making final arrangements.

Jones Brothers
Eastlawn Memorial Chapel
3035 Millerfield Road
Macon, Georgia 31217
Served By Professional Morticians

DISCLOSURE/DISCLAIMER FORM

The Federal Trade Commission Trade Regulation Rule for "Funeral Industry Practices" requires certain disclosures and prohibits misrepresentations. This Disclosure/Disclaimer form is a check list we ask those we serve to read and sign. During the arrangements of the funeral of BETTY CLOWERS our funeral firm did or did not do the following:

Name of Deceased BETTY CLOWERS

Date of Death OCTOBER 24, 2025

Date of Funeral and/or Final Disposition of Deceased NOVEMBER 3, 2025

We who made the arrangements for the funeral and final disposition of the remains of BETTY CLOWERS deceased, do hereby attest to the following:

1. I/We were given/shown a currently effective General Price List prior to discussing prices, services or merchandise.
2. I/We were given/shown a currently effective Casket Price List prior to discussing prices of caskets.
3. I/We were given/shown a currently effective Outer Burial Container Price List prior to discussing prices of outer burial containers.
4. I/We were not told that embalming is required by law and were told that the law does not require embalming except in certain special cases. If it was provided this was done with my/our permission.
5. I/We were not told that any law requires embalming for direct cremations, immediate burial, a funeral using a sealed casket, or if refrigeration is available and the funeral is without viewing or visitation and with a closed casket.
6. I/We were not told that any law requires a casket for direct cremation or that a casket other than an unfinished wood box is required for direct cremation or for direct disposition.
7. I/We were told that the state law does not require the purchase of an outer burial container or any of the funeral goods or services.
8. I/We selected except as set forth on the statement of funeral goods and services selected.
9. No claims were made to me/us as to the merchandise or other offerings of this funeral firm (embalming, casket, outer burial container) that embalming or the use of any merchandise available from this funeral firm would delay the decomposition of the remains for a long term or indefinite time, or would protect the body from graveside substances. No representations or warranties were made by the manufacture. The only warranties expressed or implied, granted in connection with the goods sold for the funeral service we arranged were the expressed written warranties, if any, extended by the manufacturers thereof. No other warranties and no warranties of merchandised fitness for a particular purpose were extended to us.
10. I/We hereby give permission for transfer of remains to above mention funeral home.

Done this 26th day of OCTOBER, 2025

Reference Number _____

Witnessed Paul H. Hickey
Funeral Firm Provider

Person(s) making final arrangements
Kayvean Clowers

IMG_4536 2.jpg

Duplicate/alternate photograph of funeral-home authorization signed by Kayveon/Keyvean Clowers, relationship listed as son, dated October 26, 2025.

JONES BROTHERS MORTUARY
3035 Millerfield Road
Macon, Georgia 31217
(478) 743-3331

AUTHORIZATION

I hereby designate the above-named funeral establishment to take charge of funeral arrangements for: BETTY CLOWERS, and I authorize the release and removal of the remains to said funeral establishment for the purpose of embalming.

I represent that I am the next of kin, or am acting as an authorized agent for the next of kin.

Signed: Keyvean Clowers
Relationship: son

Co-Signed: _____
Relationship: _____

WITNESS: Heidi Stanley DATE: 10 26 2025

FOR VERBAL (TELEPHONE) AUTHORIZATION:

Authorization from _____
Relationship _____
Date _____ Time _____ Received by _____

IMG_4536.jpg

Funeral-home authorization signed by Kayveon/Keyvean Clowers, relationship listed as son, dated October 26, 2025.

JONES BROTHERS MORTUARY
3035 Millerfield Road
Macon, Georgia 31217
(478) 743-3331

AUTHORIZATION

I hereby designate the above-named funeral establishment to take charge of funeral arrangements for: BETTY CLOWERS, and I authorize the release and removal of the remains to said funeral establishment for the purpose of embalming.

I represent that I am the next of kin, or am acting as an authorized agent for the next of kin.

Signed: Keyvean Clowers
Relationship: son

Co-Signed: _____
Relationship: _____

WITNESS: Heidi Stanley DATE: 10 26 2025

FOR VERBAL (TELEPHONE) AUTHORIZATION:

Authorization from _____
Relationship _____
Date _____ Time _____ Received by _____

IMG_4537 2.jpg

Duplicate/alternate photograph of 2020 Affidavit of Descent and Explanation, recorded at Deed Book 10588, Pages 319-321.

Doc ID: 015163810003 Type: GLR
Recorded: 06/01/2020 at 01:27:00 PM
Fee Amt: \$25.00 Page 1 of 3
Bibb County Superior Court
Erica Woodford Clerk
BK **10588** PG **319-321**

Return Recorded Document to:
Law Office of Tim J. Thompson
3318 Vineville Avenue
Macon, GA 31204-2328

AFFIDAVIT OF DESCENT & EXPLANATION

STATE OF GEORGIA
COUNTY OF BIBB

RE: Property known as:
1661 Lawton Ave, Macon,
Bibb County, Georgia

Deed Book Reference:
Book 2765, Page 344
Bibb County Records

The undersigned Deponents, **Erica Franklin**, being duly sworn, deposes and says on oath that she is a resident of Bibb County, Georgia, and is familiar with the property described in the caption hereof and have personal knowledge of the facts contained herein.

Item I.

The captioned property was vested with a ½ interest to my step-father, **Willie Clowers** and a ½ interest to my mother, **Betty Jean Clowers** by Warranty Deed Deed dated October 23, 1995 and recorded in Deed Book 2765, Page 344, Bibb County records. Willie Clowers died intestate a resident of Bibb County, Georgia on August 10, 2004. A copy of his death certificate is attached hereto and made a part hereof for all purposes. At the time of his death **Willie Clowers** was married to **Betty Jean Clowers**. Willie Clowers had no children born, adopted, living or deceased at the time of his death.

Item II.

Upon the death of **Willie Clowers** the heirs-at-law of **Willie Clowers** are the following:

Betty Jean Clowers **Wife**

2020 Affidavit of Descent and Explanation, first page, concerning 1661 Lawton Avenue.

Doc ID: 015163810003 Type: GLR
Recorded: 06/01/2020 at 01:27:00 PM
Fee Amt: \$25.00 Page 1 of 3
Bibb County Superior Court
Erica Woodford Clerk
BK 10588 PG 319-321

Return Recorded Document to:
Law Office of Tim J. Thompson
3318 Vineville Avenue
Macon, GA 31204-2328

AFFIDAVIT OF DESCENT & EXPLANATION

STATE OF GEORGIA
COUNTY OF BIBB

RE: Property known as:
1661 Lawton Ave, Macon,
Bibb County, Georgia

Deed Book Reference:
Book 2765, Page 344
Bibb County Records

The undersigned Deponents, **Erica Franklin**, being duly sworn, deposes and says on oath that she is a resident of Bibb County, Georgia, and is familiar with the property described in the caption hereof and have personal knowledge of the facts contained herein.

Item I.

The captioned property was vested with a ½ interest to my step-father, **Willie Clowers** and a ½ interest to my mother, **Betty Jean Clowers** by Warranty Deed Deed dated October 23, 1995 and recorded in Deed Book 2765, Page 344, Bibb County records. Willie Clowers died intestate a resident of Bibb County, Georgia on August 10, 2004. A copy of his death certificate is attached hereto and made a part hereof for all purposes. At the time of his death **Willie Clowers** was married to **Betty Jean Clowers**. Willie Clowers had no children born, adopted, living or deceased at the time of his death.

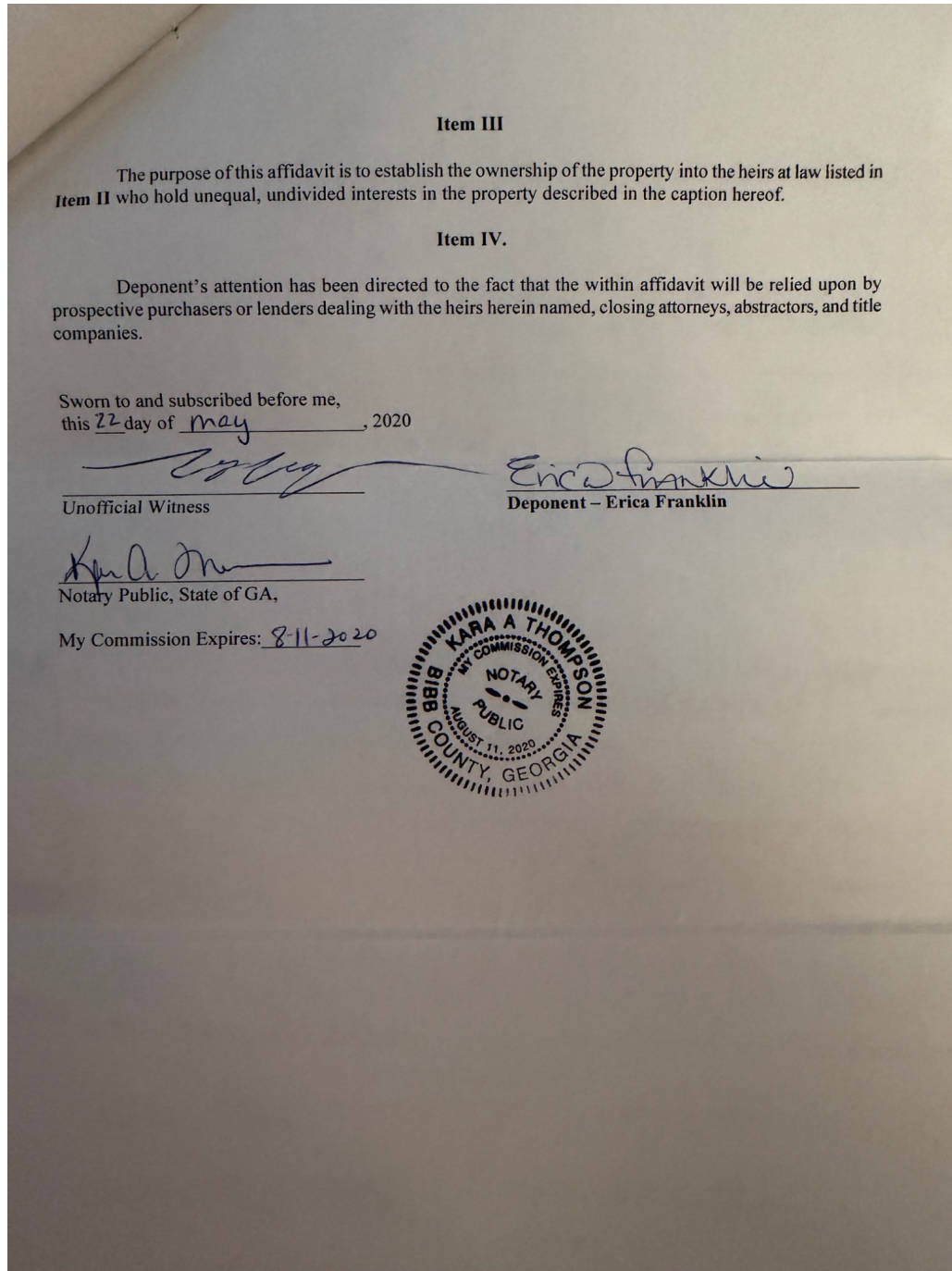
Item II.

Upon the death of **Willie Clowers** the heirs-at-law of **Willie Clowers** are the following:

Betty Jean Clowers **Wife**

2

Duplicate/alternate photograph of second page/signature page of the 2020 Affidavit of Descent.



2020 Affidavit of Descent, signature page, signed by Erica Franklin and notarized.

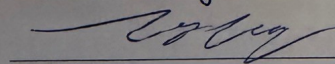
Item III

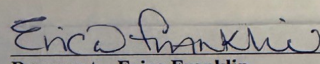
The purpose of this affidavit is to establish the ownership of the property into the heirs at law listed in **Item II** who hold unequal, undivided interests in the property described in the caption hereof.

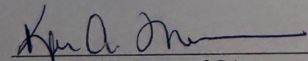
Item IV.

Deponent's attention has been directed to the fact that the within affidavit will be relied upon by prospective purchasers or lenders dealing with the heirs herein named, closing attorneys, abstractors, and title companies.

Sworn to and subscribed before me,
this 22 day of May, 2020


Unofficial Witness


Deponent - Erica Franklin


Notary Public, State of GA,

My Commission Expires: 8-11-2020



IMG_4539.jpg

Certified copy photograph of Willie Lee Clowers death certificate, showing Betty Clowers as wife/informant and 1661 Lawton Avenue as residence.

STATE OF DEATH/STATE OF GEORGIA		Birth Number	Local File Number	State File Number
DECEASED WILLIE LEE CLOWERS		11-1543-04		
1b. RACE (White, Black, Amer. Indian, etc.) BLACK		1c. ORIGIN OF DECEDENT (Italian, Mex., French, English, etc.) AMERICAN	2. SEX MALE	3. DATE OF DEATH (Mo., Day, Year) AUGUST 10, 2004
4. CITY, TOWN OR LOCATION OF DEATH MACON		5. HOSPITAL OR OTHER INSTITUTION NAME (If not in either, give street and No.) COLISEUM MEDICAL CENTERS	6. DATE OF BIRTH (Mo., Day, Year) FEB. 20, 1941	7a. AGE - Last Birthday (Years) 63
8a. STATE AND COUNTY OF BIRTH (If not in USA, name Country) GA: BIBB		8b. CITIZEN OF WHAT COUNTRY? U.S.A.	9. MARRIED, NEVER MARRIED, WIDOWED, DIVORCED (Specify) MARRIED	10. SPOUSE (If married or widowed, give spouse's name - If wife, give maiden name) BETTY BROWN
11. SOCIAL SECURITY NUMBER [REDACTED]		12. USUAL OCCUPATION (Give kind of work done during most of working life, even if retired) TRUCK DRIVER	13. KIND OF INDUSTRY OR BUSINESS CEMENT	14. WAS DECEDENT EVER IN U.S. ARMED FORCES (Yes or No) NO
15a. RESIDENCE - STATE GEORGIA		15b. COUNTY BIBB	15c. CITY, TOWN OR LOCATION MACON	15d. STREET AND NUMBER AND ZIP CODE 1661 LAWTON AVE 31208
16a. FATHER'S NAME LEONARD		16b. MOTHER'S NAME LILLIE MAE	16c. LAST NAME ADAMS	16d. INSIDE CITY LIMITS? (Yes or No) YES
17. INFORMANT'S NAME BETTY CLOWERS		18. MAILING ADDRESS (Street, R.F.D. No., City or Town, State, Zip) 1661 LAWTON AVE. MACON, GA 31208		19. RELATIONSHIP WIFE
20. BURIAL, CREMATION, REMOVAL (Specify) BURIAL		21. DISPOSITION DATE (Mo., Day, Year) AUG. 14, 2004	22. CEMETERY OR CREMATORY NAME PLEASANT CHURCH CEMETERY	23. LOCATION (City or Town, State, Zip, County) LIZELIA, GA 31052 BIBB
24. FUNERAL DIRECTOR (Signature) [Signature]		25. FUN. DIR. LICENSE NO. 3946	26. NAME AND ADDRESS OF FACILITY (Street, R.F.D. No., City or Town, State, Zip) JONES BROTHERS EASTLAWN MEMORIAL CHAPEL, INC. 3035 MILLERFIELD ROAD, MACON, GA 31217	27. EST. LICENSE NO. 1235
28. EMBALMER (Signature) [Signature]		29. EMBALMER LICENSE NO. 3516	30. NAME AND ADDRESS OF FACILITY (Street, R.F.D. No., City or Town, State, Zip) JONES BROTHERS EASTLAWN MEMORIAL CHAPEL, INC. 3035 MILLERFIELD ROAD, MACON, GA 31217	
31. PART I A. ACUTE CARDIOPULMONARY ARREST B. ASPIRATION PNEUMONIA C. SEVERE CARDIOMYOPATHY		32. PART II A. ACUTE CARDIOPULMONARY ARREST B. ASPIRATION PNEUMONIA C. SEVERE CARDIOMYOPATHY		
33. CAUSE OF DEATH A. ACUTE CARDIOPULMONARY ARREST B. ASPIRATION PNEUMONIA C. SEVERE CARDIOMYOPATHY		34. OTHER SIGNIFICANT CONDITIONS - conditions contributing to death but no related to cause given in Part I A. (If female, indicate if pregnant or birth occurred within 90 days of death.)		
35. WAS OPERATION PERFORMED (Yes or No) NO		36. DATE OF OPERATION (Mo., Day, Year)	37. CONDITIONS FOR WHICH OPERATION WAS PERFORMED (Specify)	
38. ACCIDENT, SUICIDE, HOMICIDE, UNDETERMINED (Specify)		39. DATE OF INJURY (Mo., Day, Year)	40. DESCRIBE HOW INJURY OCCURRED	
41. INJURY AT WORK? (Yes or No)		42. PLACE OF INJURY (Home, Farm, Street, Factory, Office, Etc.) (Specify)	43. LOCATION (Street, R.F.D. No., City or Town, State, Zip, County)	
44. DATE SIGNED (Mo., Day, Year) 8/16/04		45. HOUR OF DEATH 9:18 PM	46. DATE SIGNED (Mo., Day, Year)	
47. NAME OF ATTENDING PHYSICIAN IF OTHER THAN CERTIFIER Clement C. Mwasa M.D.		48. PHYS. LIC. NO. 033504	49. ADDRESS OF CERTIFIER (Street, R.F.D. No., City or Town, State, Zip) 1122 Gray Hwy Ste 4 Macon Ga. 31211	
50. REGISTRAR (Signature) [Signature]		51. DATE RECEIVED BY REGISTRAR (Mo., Day, Year) September 14, 2004		52. DATE RECEIVED BY REGISTRAR (Mo., Day, Year)
53. DEPARTMENT OF HUMAN RESOURCES VITAL RECORDS SERVICE				
54. CERTIFICATE OF RECORD				
55. THIS IS AN EXACT COPY OF THE DEATH CERTIFICATE AS RECEIVED FOR FILING IN BIBB COUNTY, GEORGIA.				
56. ISSUED BY: [Signature]				
57. DATE SIGNED: 9-14-04				
58. (VOID WITHOUT ORIGINAL SIGNATURE AND IMPRESSED SEAL)				
59. OTHER COPIES MADE FROM THIS COPY ARE INVALID				

IMG_4540.jpg

2022 proposed real estate sales contract: Red Clay Properties purchaser, Betty Jean Clowers seller, 1661 Lawton Avenue, stated purchase price \$42,500.

REAL ESTATE SALES

CONTRACT

1. Purchase and Sale. Red Clay Properties (hereinafter "Purchaser") agrees to buy, and Betty Jean Clowers (hereinafter "Seller") agrees to sell all that tract or parcel of land, with such improvements located thereon, commonly known as 1661 Lawton Avenue, Macon Ga, 31021 and further described on the attached **Exhibit "A"** (hereinafter referred to as the "Property" and together with all attached lighting fixtures, all electrical, mechanical, plumbing, air conditioning, and any other attached systems or attached fixtures and all plants, trees, and shrubbery now a part thereof, together with all the improvements thereon and all appurtenances thereto being hereinafter collectively referred to as the "Property").

2. Purchase Price and Method of Payment. The purchase price of said property shall be Forty Two Thousand & Five Hundred Dollars (\$42,500) to be paid as set forth below:

☐ **A. CASH:** This is a cash transaction with no contingencies for financing.

OR

☐ **B. FINANCING CONTINGENCY/ LOAN CONDITION:** This Agreement is made conditioned upon Purchaser's "ability to obtain" (as hereinafter defined) a loan in the principal amount of ☐ _____ % of the purchase price or ☐ \$ 42,500, to be secured by a first priority Deed to Secure Debt on the Property (the "Loan"): said Loan to be paid in consecutive monthly installments of principal and interest over a term of not less than _____ years. Purchaser shall make application for such loan within 5 days (five (5) days if left blank) of the Effective Date (as hereinafter defined). "Ability to Obtain" as used herein shall mean that Purchaser is qualified to receive the loan based upon customary and standard loan underwriting criteria. Proceeds of the Loan, together with any balance of the Purchase Price, shall be paid in cash or its equivalent by Purchaser to Seller at Closing.

3. Earnest Money. Purchaser shall pay Earnest Money to **SELLER**, to hold as Escrow Agent (hereinafter "Holder") within 3 days of execution of this Agreement,

One Thousand Dollars

(\$ 1,000) by check or wire, which earnest money is to be applied as part payment of the purchase price of said Property at time of closing. Purchaser and Seller understand and agree that Holder shall deposit the earnest money in escrow upon receipt.

4. Warranty of Title. Seller warrants that they presently have title to said Property, and at the time of closing agrees to convey good and marketable title to said Property by general warranty deed, subject only to a) zoning ordinances affecting said Property, (b) general utility, sewer, and drainage easements of record, (c) subdivision and/or condominium declarations, covenants,

2022 proposed contract page containing title examination, condition, cooperation, commission, and successor provisions.

restrictions and easements of record, and (d) leases, other easements, other restrictions and encumbrances specified in this contract.

5. Title Examination. Purchaser shall have a reasonable time after acceptance of this contract to examine title and to furnish Seller with a written statement of objections affecting the marketability of said title. Seller shall have a reasonable time after receipt of such objections to satisfy all valid objections, and if Seller fails to satisfy such valid objections within a reasonable time, then at the option of Purchaser, evidenced by written notice to Seller, this contract shall be null, and void and all earnest money shall be returned to the Purchaser. Marketable title as used herein shall mean title which a title insurance company licensed to do business in the State of Georgia will insure at its regular rates, subject only to standard exceptions unless otherwise specified herein.

6. Damage or Condemnation. Seller represents that there is no pending or threatened condemnation or eminent domain proceedings affecting the Property. Risk of loss resulting from such proceeding which commenced prior to closing, and risk of loss to the Property due to any other cause, remains with Seller until Closing. Seller warrants that at time of closing the Property will be in the same condition as it is on the date this contract is signed by Seller, normal wear and tear excepted. However, should the Property be destroyed or substantially damaged before time of closing, then at the election of Purchaser (a) the contract may be canceled, or (b) Purchaser may consummate the contract and at closing, Seller will assign, transfer and set over to the Purchaser all the right, title and interest of Seller in and to any awards, insurance proceeds or claims that have been or may thereafter be made for such damage and the Purchase Price shall be reduced by the amount of the insurance deductible. This election is to be exercised within ten (10) days after Purchaser has been notified in writing by Seller of the amount of loss. If Purchaser has not been so notified within fortyfive (45) days after the occurrence of such damage or destruction, Purchaser may, at its option, cancel the contract.

7. Condition of Property. The parties agree that Purchaser has had an opportunity to inspect the land and perform all due diligence on the property prior to closing.

8. Responsibility to Cooperate. Seller and Purchaser agree that such papers as may be necessary to carry out the terms of this contract shall be produced, executed and/or delivered by such parties at time required to fulfill the terms and conditions of this agreement.

9. Real Estate Commission. Purchaser and Seller hereby indemnify each other against, and agree to hold each other harmless from, any liability or claim (and all expenses, including attorney's fees, incurred in defending any such claim or enforcing this indemnity) for a real estate brokerage commission or similar fee or compensation arising out of or any way connected with any claimed dealings with the indemnitor and relating to this Contract or the purchase and sale of the Property. The foregoing indemnities shall survive the rescission, cancellation, termination, or consummation of this Contract.

10. Time is of the Essence. Time is of the essence of this Contract.

11. Successors and Assigns. This Contract shall inure to the benefit of, and be binding upon, the parties hereto, their heirs, successors, administrators, executors, and assigns.

2022 proposed contract page naming closing attorney Benjamin F. McElreath Jr. of Martin Snow LLP and a March 15 closing date.

12. Transfer or Assignment. This Contract shall NOT be transferred or assigned without the written consent of all parties to this Contract.

13. Closing and Possession.

A. Real estate taxes applicable to said Property for the calendar year in which the sale is closed shall be prorated as of the date of Possession, hereinafter defined. If the current tax bill is not available at closing, prorations shall be based on the most recent bill or current tax assessment, whichever is more recent, and the parties agree to adjust this amount when the actual bill is available.

B. Purchaser shall pay State of Georgia property transfer tax. Seller shall pay all special assessments and charges against the Property which are either due or declared at or prior to closing and shall disclose any such assessments or charges to the Purchaser if all parties agree. Seller shall pay a release fee for any mortgages against the property, if any.

C. Sale shall be closed on or before March 15 with possession of the property transferred to the Purchaser at the time of closing.

D. Purchaser and Seller agree (1) to comply with, and (2) to execute and deliver such certifications, affidavits, and statements as are required at the closing to meet the requirements of Internal Revenue Code Section 1445 (Foreign/NonForeign Sellers).

E. Purchaser and Seller agree that the closing attorney shall be **BENJAMIN F. MCELREATH, JR., with MARTIN SNOW, LLP at their office located at 4025 VINEVILLE AVE, MACON, GA 31204. phone: 478-750-2581, email: bfmcelreath@martinsnow.com**

14. Survival of Contract. Any condition or stipulation not fulfilled at time of closing shall survive the closing, execution, and delivery of the Warranty Deed, until said conditions or stipulations are fulfilled.

15. Disclaimer. To the best of Seller's knowledge, there are no toxic or hazardous wastes or substances on the Property nor have any such substances or materials been used, generated, stored, treated or disposed of on the Property and no portion of the Property has been used as a cemetery, landfill, or dump.

16. Entire Agreement. This Contract constitutes the sole and entire agreement between the parties hereto and no modification of this Contract shall be binding unless attached hereto and signed by all parties to this Contract.

17. Default. If Purchaser fails or refuses to perform any of Purchaser's covenants herein, Seller agrees to keep the earnest money as liquidated damages in full settlement of all claims for damages hereunder, and Purchaser shall thereupon be released of any further obligations or liabilities hereunder. If Seller fails or refuses to perform any of Seller's covenants therein or if any of the conditions of the sale contemplated by this contract are unable to be satisfied, in the sole good faith discretion of Purchaser, Seller shall immediately refund the earnest money to Purchaser and Purchaser shall be entitled to pursue such rights and remedies as may be available at law or equity, including specific performance of this contract.

IMG_4543.jpg

2022 proposed contract acceptance page signed by purchaser Red Clay Properties; seller signature is not shown on this page.

18. Inspection and Due Diligence. Due Diligence Period: Property is being sold subject to a Due Diligence Period of 15 days from the Binding Agreement Date. Purchaser may terminate the contract for any reason up to the end of due diligence and receive a refund of Earnest Money.

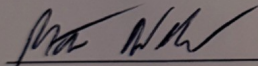
This Contract shall constitute an offer by Purchaser. This offer is open for acceptance by Seller until February 3rd, 2022 at 2:00 p.m. If this offer is so accepted by Seller, it shall become a binding contract.

SPECIAL STIPULATIONS (IF ANY);

1.

Acceptance. The above proposition is hereby accepted at 2 o'clock, 00 M., on the day of February 3rd, 2022.

Purchaser:

 (SEAL)

NAME: Red Clay Properties

CELL: 478-501-5236

EMAIL: weldonmr@gmail.com, weldont22@gmail.com

____ (SEAL)

NAME:

CELL:

EMAIL:

IMG_4544.jpg

2022 proposed contract seller signature page; lines for Betty Jean Clowers and Erica Franklin appear unsigned in the photographed copy.

Seller:

_____(SEAL)

NAME: Betty Jean Clowers

CELL:

EMAIL:

_____(SEAL)

NAME: Erica Franklin

CELL: 478-841-1627

EMAIL: ericafranklin628@gmail.com

IMG_4545.jpg

Legal description exhibit for 1661 Lawton Avenue / Lot 9, Block 16, Huguenin Heights.

All that tract or parcel of land situate

lying and being in Bibb County, Georgia, in the City of Macon, and being known and distinguished as Lot

No.9 in Block 16 of Huguenin Heights according to a plat thereof of record in Deed Book MM, Page 710,

Clerks Office, Bibb Superior Court. The property herein conveyed is more particularly described according to said plat as fronting a distance of 50.0 feet on the northeasterly side of Lawton Avenue,

extending back therefrom in a northeasterly direction, with an even width, a distance of 122.5 feet back

therefrom in a northeasterly direction , with an even width, a distance of 122.5 feet to the southeasterly

side of a 10.0 foot alley, and being 50.0 feet across the rear. There is a dwelling located on said property

now known as 1661 Lawton Avenue Being part of the same property conveyed in Deed Book 1571, Page

161, Clerk's Office Bibb Superiors Court

IMG_4546.jpg

2025 Bibb County property assessment page for parcel P074-0432, 1661 Lawton Avenue; owner line appears Betty Jean Clowers c/o Frances Brooks Thornton.

Bibb County, GA

2025 Assessment Notice

[2025 Assessment Notice \(PDF\)](#)

Summary

Parcel Number	P074-0432
Location Address	1661 LAWTON AVE
Legal Description	HUGUENIN HGTS
	(Note: Not to be used on legal documents)
Class	R3-Residential
	(Note: This is for tax purposes only. Not to be used for zoning.)
Zoning	HR-3
Tax District	MACON-BIBB (District 11)
Millage Rate	33
Acres	0.14
Neighborhood	Williams-College Tinsley (202003)
Homestead Exemption	Yes (S4)
Landlot/District	N/A

[View Map](#)



Owner

CLOWERS BETTY JEAN
C/O FRANCES BROOKS THORNTON
91 LAKE HARTWELL DR
NORTH AUGUSTA, SC 29841-8691

Land

Type	Description	Calculation Method	Square Footage	Frontage	Depth	Acres	Lots
Residential	Res-Huguenin Linden	Acres	0	50	122	0.14	0

Residential Improvement Information

Style	One Family
Heated Square Feet	1940
Interior Walls	Finished
Exterior Walls	Wood
Foundation	Crawl/Masonry
Attic Square Feet	0
Basement Square Feet	0
Year Built	1900
Roof Type	Asphalt Shingles
Flooring Type	Finished
Heating Type	No Heat/Sp Htr
Number Of Rooms	0
Number Of Bedrooms	3
Number Of Full Bathrooms	2
Number Of Half Bathrooms	0
Number Of Plumbing Extras	3
Value	\$166,045
Condition	Fair
Fireplaces/Appliances	Const 1 sty 2 Box 1
House Address	1661 LAWTON AVE

Sales

Sale Date	Deed Book / Page	Plat Book / Page	Sale Price	Reason	Grantor	Grantee
6/1/2020	10588 319		\$0	Affidavit	CLOWERS WILLIE	CLOWERS BETTY J
6/25/2009	8133 98	MM 710	\$10	Quit-Claim Deed	CLOWERS WILLIE HEIRS OF &	CLOWERS WILLIE &

IMG_4547.jpg

2025 assessment valuation history and property photograph.

Valuation					
	2025	2024	2023	2022	2021
Previous Value	\$181,340	\$146,136	\$150,232	\$139,368	\$139,368
Land Value	\$15,295	\$15,295	\$13,300	\$29,147	\$27,759
+ Improvement Value	\$166,045	\$166,045	\$132,836	\$121,085	\$111,609
+ Accessory Value	\$0	\$0	\$0	\$0	\$0
= Current Value	\$181,340	\$181,340	\$146,136	\$150,232	\$139,368

Photos



Sketches

Obituary page for Betty Jean Clowers listing family relationships and order of service.

The Obituary

Betty Jean Clowers was born to the late Mozelle Brown Minnifield and the late Joe Brown on November 28, 1941.

Betty attended Bibb County Public Schools and was faithfully employed by Cagle's and a head cook at Minnie Burghard Elementary School until her retirement.



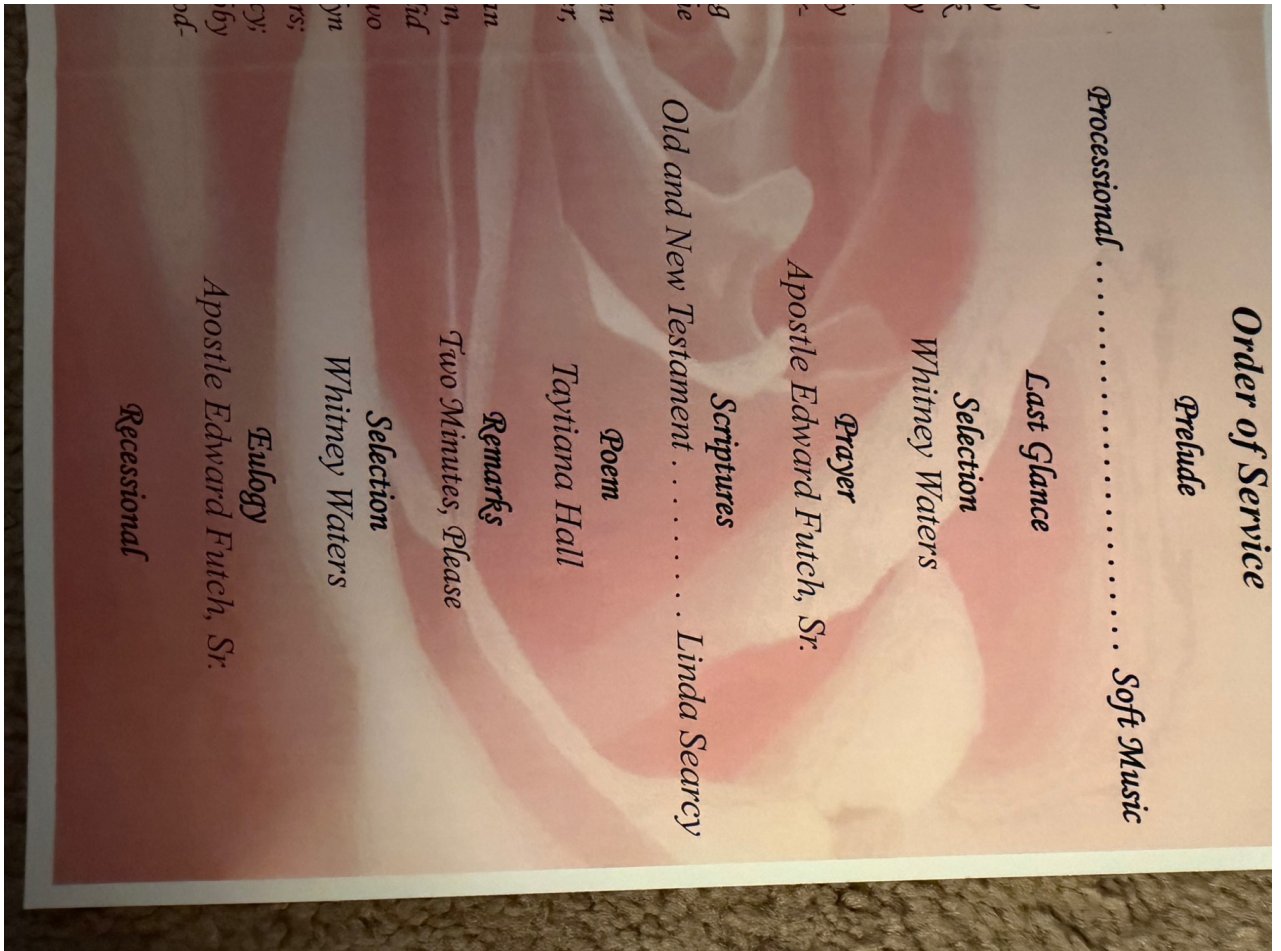
Betty was joined in Holy Matrimony to the late Willie Lee Clowers and they were married nearly fifty years.

Betty enjoyed baking, sewing, decorating, directing weddings, traveling, and a wide variety of arts and crafts. She was well loved by her family and her community.

Betty was preceded in death by her grandson, Keywan Clowers; sister, Bertha Curry Anderson; and god-daughter, Starlet Fordham.

Betty leaves to cherish her memories: her son, Keywan Clowers, Sr.; grandchildren, Tiffany Hall, Jamel Nolson, Akeem Clowers, Erica Franklin, Nathaniel Stewart, Khalid Clowers, and Jabari Clowers; fifteen great-grandchildren; two great-great grandchildren; two sisters-in-law, Jacquelyn Clowers and Linda Clowers; one brother-in-law, Billy Clowers; nieces, Ola Ross, Natalie Callaway, and Linda Searcy; nephew, Richard (Tammy) Curry; a devoted cousin, Mr. Bobby Brown; a devoted friend, Ms. Beverly Stanley; several god-children; and a host of other relatives and friends.

Funeral program order of service.



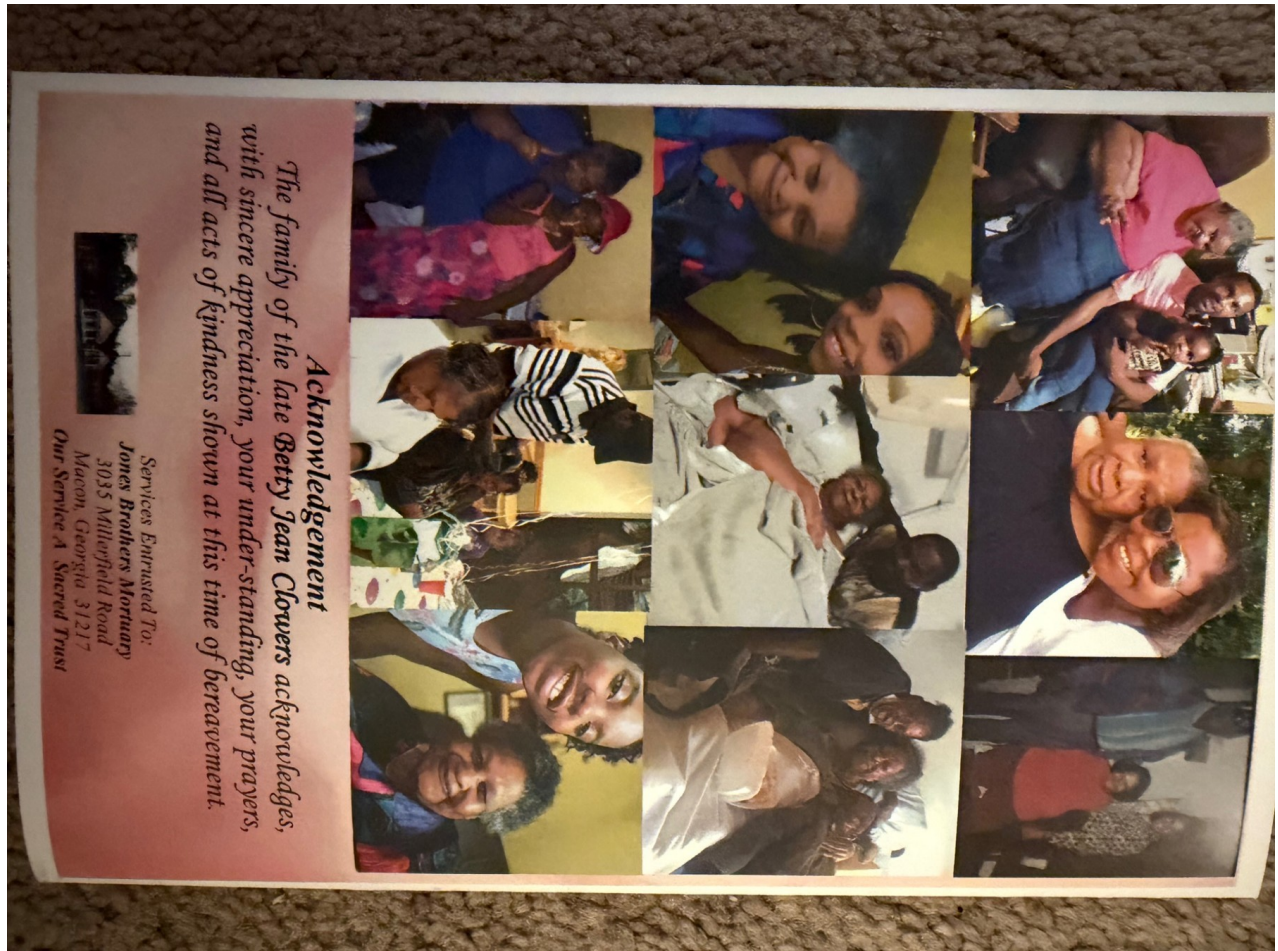
IMG_4550.jpg

Funeral program cover for Betty Jean Clowers, sunrise November 28, 1941, sunset October 24, 2025.



IMG_4551.jpg

Funeral program acknowledgements and family photographs.



2004 Affidavit of Descent and Explanation concerning Willie Clowers / 1661 Lawton Avenue.

Return Recorded Document to:
Law Office of Tim J. Thompson
3318 Vineville Avenue
Macon, GA 31204-2328

AFFIDAVIT OF DESCENT & EXPLANATION

STATE OF GEORGIA
COUNTY OF BIBB

RE: Property known as:
1661 Lawton Ave, Macon,
Bibb County, Georgia

Deed Book Reference:
Book 2765, Page 344
Bibb County Records

The undersigned Deponents, **Erica Franklin**, being duly sworn, deposes and says on oath that she is a resident of Bibb County, Georgia, and is familiar with the property described in the caption hereof and have personal knowledge of the facts contained herein.

Item I.

The captioned property was vested with a $\frac{1}{2}$ interest to my step-father, **Willie Clowers** and a $\frac{1}{2}$ interest to my mother, **Betty Jean Clowers** by Warranty Deed dated October 23, 1995 and recorded in Deed Book 2765, Page 344, Bibb County records. Willie Clowers died intestate a resident of Bibb County, Georgia on August 10, 2004. At the time of his death **Willie Clowers** was married to **Betty Jean Clowers**. *Willie Clowers had no children born, adopted, living or deceased at the time of his death.*

Item II.

Upon the death of **Willie Clowers** the heirs-at-law of **Willie Clowers** are the following:

Betty Jean Clowers **Wife**

Second page/signature page of 2004 affidavit of descent.

Item III

The purpose of this affidavit is to establish the ownership of the property into the heirs at law listed in **Item II** who hold unequal, undivided interests in the property described in the caption hereof.

Item IV.

Deponent's attention has been directed to the fact that the within affidavit will be relied upon by prospective purchasers or lenders dealing with the heirs herein named, closing attorneys, abstractors, and title companies.

Sworn to and subscribed before me,
this ____ day of _____, 2020

Unofficial Witness

Deponent - Erica Franklin

Notary Public, State of GA,
My Commission Expires: _____

Willie Lee Clowers death certificate / record copy supporting the descent affidavit.

[illegible]